

KEY MOMENT

THE KANSAS-NEBRASKA ACT

In January 1854, in an attempt to defuse the controversy over whether or not slavery should be permitted in the Nebraska Territory, Senator Douglas devised a plan to split the Nebraska Territory into two separate future states: Kansas to the west of Missouri, a slave state; and Nebraska to the west of Iowa and Minnesota, a free state.

If passed, the Kansas-Nebraska Act would repeal the Missouri Compromise of 1820, which had outlawed slavery from all land north of Missouri's southern border. Douglas called for "popular sovereignty," which would make the decision about slavery in each new territory subject to the will of the voters and a purely local issue.

Abolitionists argued that slavery would have been banned in both states under the terms of the Missouri Compromise. The Democratic Party was split, but Douglas was stubborn, and the act was passed by Congress on May 30, 1854. Far from ending the controversy, it threw Kansas into turmoil, earning it the name Bleeding Kansas.

Rival state governments

The new pro-slavery legislature legalized slavery and banned anti-slavery speeches and texts. Those who aided runaway slaves were to be punished with death. This intimidation enraged the larger free-state faction of Kansas residents. Rejecting the official territorial government as invalid, in the fall of 1855 they gathered in Topeka where they formed their own legislature, elected a governor, and wrote the Topeka Constitution. By January 1856, two rival governments competed for control of Kansas and dominated national politics. Pierce recognized the pro-slavery government in the city of Lecompton, while the new Republican Party, founded in 1854, backed the free-state legislature and attacked Democrats as tools of Southern Slave Power.

The Massachusetts abolitionist, Senator Charles Sumner, was incensed. In May, he delivered a two-day speech entitled "The Crime Against Kansas," in which he accused pro-slavery men of carrying on with the "harlot, Slavery." Popular sovereignty had failed.

On May 21, 1856, pro-slavery men rode into Lawrence, a free-state town, and destroyed its newspaper's press and burned its Free State Hotel. Republican newspapers and campaign speeches